

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #3	CCRB Case #: 201508279	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/29/2015 4:15 PM	Location of Incident: § 87(2)(b)	Precinct: 66	18 Mo. SOL 3/29/2017	EO SOL 3/29/2017	
Date/Time CV Reported Tue, 09/29/2015 8:59 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/29/2015 8:59 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Sidd Yousafzai	02417	945123	066 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eudy Santos	06411	952214	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Sidd Yousafzai	Discourtesy: PO Sidd Yousafzai spoke discourteously to an individual.	§ 87(2)(b)
B.POM Sidd Yousafzai	Discourtesy: PO Sidd Yousafzai spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On September 29, 2015, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On September 29, 2015, at approximately 4:15 p.m., § 87(2)(b)'s unidentified female neighbor called 311 to report a suspicious truck that was parked in front of her apartment. § 87(2)(b) and his neighbor believed that the vehicle was suspicious because it had New Mexico license plates, containers of liquid in the back, and they previously observed the driver enter a nearby mosque. PO Sidd Yousafzai and PO Eudy Santos of the 66th Precinct responded to the scene in their RMP and deemed the truck to not be suspicious after inspecting it. § 87(2)(b)'s neighbor informed the officers that the driver of the truck went to the mosque around the corner. On hearing this comment, PO Yousafzai allegedly asked, "Are you a fucking racist?" (**Allegation A**). On hearing PO Yousafzai's comment to his neighbor, § 87(2)(b) told PO Yousafzai that he wished he had a recording device at that moment. PO Yousafzai replied to § 87(2)(b) "Fuck you. Tell it to the Commissioner" (**Allegation B**). PO Yousafzai and PO Santos then got into their RMP and left the scene.

There was no video footage of this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b), § 87(2)(g)
- On February 4, 2016, a FOIL Registration to the Office of the Comptroller confirmed that § 87(2)(b) did not file any notices of claim for this incident (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (03 Board Review).
- PO Yousafzai has been a member of the NYPD for 8 years and has three previous CCRB cases involving five allegations, and no substantiated allegations. § 87(2)(g)

Potential Issues

- § 87(2)(b) refused to identify his neighbor who was the second victim and the investigation was subsequently unable to identify this victim. On October 30, 2016, a call was placed to a phone number located in a Lexis Nexis search for the apartment identified by § 87(2)(b) as belonging to the female victim. A female answered the call, said "wrong party" and hung up (04 Board Review).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Yousafzai said that at the scene he made a general statement to himself along the lines of, “I’m dealing with racist people.” However, PO Yousafzai said that he never referred to § 87(2)(b) [REDACTED] or his neighbor as a racist directly and § 87(2)(b) [REDACTED] never alleged that PO Yousafzai made this statement. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Santos said that he briefly climbed onto the bed of the suspicious truck in order to read the labels of containers of liquid to ensure they posed no safety hazard. However, no civilians ever complained of this action. § 87(2)(g) [REDACTED]

Allegation A –Discourtesy: PO Sidd Yousafzai spoke discourteously to § 87(2)(b) [REDACTED]

Allegation B –Discourtesy: PO Sidd Yousafzai spoke discourteously to § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] said that while his neighbor spoke to PO Yousafzai and PO Santos, he also expressed his concerns about the truck to PO Yousafzai. However, PO Yousafzai told him that the situation was none of his business. § 87(2)(b) [REDACTED] then went inside his building, but continued to watch the incident from his fourth story window. § 87(2)(b) [REDACTED] heard his neighbor mention to PO Yousafzai that the driver of the truck went to the mosque around the corner. PO Yousafzai responded to this comment by asking, “Are you a fucking racist?” § 87(2)(b) [REDACTED]’s neighbor responded by telling PO Yousafzai that she was under the impression that if she saw something, she was supposed to say something. On hearing PO Yousafzai’s comment to his neighbor, § 87(2)(b) [REDACTED] told PO Yousafzai that he wished he had a recording device at that moment. PO Yousafzai replied, “Fuck you. Tell it to the Commissioner.” § 87(2)(b) [REDACTED] told PO Yousafzai that he was the nephew of a Deputy Inspector and that he was not trying to give PO Yousafzai a hard time, but that he and his neighbor were merely concerned about the truck. PO Yousafzai and PO Santos then left the scene in their RMP (04 Board Review).

PO Yousafzai said that upon arriving on the scene, they inspected the truck, which had no observable violations. PO Yousafzai did not observe anything suspicious about the truck or any indication of terrorism. After PO Yousafzai and PO Santos inspected the truck, a female stuck her head out of her window on the first floor of a nearby building and spoke to PO Yousafzai. PO Yousafzai did not remember the female’s specific statement, but said that she acknowledged making the 311 call reporting the truck. PO Yousafzai told the woman that the truck had no violations and there was nothing suspicious about it. The female then told PO Yousafzai that the truck belonged to a radical Muslim who went to the Mosque around the corner. The female provided no further information, but insisted that PO Yousafzai take action against the driver of the truck. PO Yousafzai told the female that he was offended by her statement and told her again that the truck had no violations and so there was nothing he could do. PO Yousafzai never called the female a “fucking racist.” PO Yousafzai never used the word “fuck” towards the female. PO

Yousafzai never used any profanity towards the female. While speaking to the female, § 87(2)(b) who was standing on the sidewalk, told PO Yousafzai that he had to do something about the truck. PO Yousafzai told § 87(2)(b) that the truck had no violations that it could be cited for. § 87(2)(b) then went into his building, but continued to speak to PO Yousafzai from his upstairs window. § 87(2)(b) told PO Yousafzai that he was the nephew of an Inspector or a Deputy Inspector in an attempt to pressure PO Yousafzai to take action against the truck. PO Yousafzai told § 87(2)(b) that even if he was the nephew of the Police Commissioner that there was nothing he could do, because the truck had no violations. PO Yousafzai never told § 87(2)(b) “Fuck you. Tell it to the commissioner.” PO Yousafzai never used the word “fuck” or any profanity towards § 87(2)(b). § 87(2)(b) then held up a cell phone and said that he was recording everything. PO Yousafzai told § 87(2)(b) that it was good he was recording, because everything should be on tape. PO Yousafzai and PO Santos then left the scene in their RMP (05 Board Review).

PO Santos confirmed that a female on the first floor of § 87(2)(b)'s building acknowledged making the 311 call, and said that she was worried about the truck, because it belonged to a Muslim. PO Santos told the female that there was nothing to worry about. § 87(2)(b) then yelled unknown statements at PO Santos and PO Yousafzai from a second or third floor window. PO Santos did not remember the specific statements, but said that § 87(2)(b) was agitated that the officers did not take further action against the truck. PO Santos then got back into his RMP and closed the door, because he considered the job to be concluded. PO Yousafzai continued to speak to the female and § 87(2)(b) for approximately one minute, but PO Santos could not hear any of this conversation, because the RMP windows were all up. PO Santos never heard PO Yousafzai call the female a “fucking racist” or tell § 87(2)(b) “Fuck you. Tell it to the commissioner.” PO Santos never heard PO Yousafzai use the word “fuck” or any profanity towards either the female or § 87(2)(b). PO Santos never heard the female of § 87(2)(b) complain that PO Yousafzai used any profanity towards them. PO Yousafzai then got back into the RMP and the officers left the scene (06 Board Review).

§ 87(2)(g)

Squad: 3

Investigator:	_____	_____	_____
	Signature	Print	Date
Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date